ORDER BY FRANK L. POLK, UNDER AUTHORITY OF EXECUTIVE ORDER OF DECEMBER 3, 1918.

A determination, order and direction concerning the transfer, release and surrender of certain rights in and to certain shares of the capital stock of New England Waste Company, and other stocks, bonds and securities, to Adolf Leve, et als.

1. By virtue of the authority vested in the President by an act of Congress entitled "An Act to Define, Regulate and Punish Trading with the Enemy, and for Other Purposes", approved October 6, 1917, and known as the "Trading with the Enemy Act", and the amendment to such Act in "An Act making appropriations to ly urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, and prior fiscal years, on account of war expenses, and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years, on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by Executive Order No. 3016, signed by the President on the third day of December, 1918;

2. WHEREAS, evidence has been presented that Adolf Leve of Boston, Suffolk County, Massachusetts, and five certain corporations, viz., the New England Waste Company, W. Wolf and Sons, the American Linters Company, the American Products Company, and the Oversea Trading Company, all corporations located and having an office for the transaction of business in said Boston, either, each or all of them, may be indebted to W. Wolf and Soehne, a German co-partnership of Stuttgart, Germany, the

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fact and amount of which indebtedness cannot be definitely ascertained until a full and final accounting between the said Adolf Leve, the said five corporations, and the said W. Wolf and Soehne after the treaty of peace between the United States and Germany, and the said W. Wolf and Soehne after investigation having heretofore been determined by the Alien Property Custodian to be an enemy not holding a license issued by the President; and

3. WHEREAS, pursuant to a request of the Alien Property Custodian, said Adolf Leve, his wife Claudine H. Leve, and said five corporations, heretofore filed certain reports with the Alien Property Custodian, as from the records of his office will more fully appear, but under protest and subject to certain reservations stated in said reports; and

4. WHEREAS, pursuant to the demands of the Alien Property Custodian, but under protest and subject to the reservations stated in said reports, certain shares of stock of the said five corporations, and certain other stocks, bonds and securities, a full list of which immediately follow, were transferred and surrendered to the Alien Property Custodian, and are now in the possession or control of the Alien Property Custodian, viz:

997	shares of common capital stock of	W. Wolf & Sons in name of Claudine H. Leve
1	" " " " " "	W. Wolf & Sons in name of Adolf Leve
463	" " " " "	American Linters Co. in name of Adolf Leve
4001	" " " " "	New England Waste Co. in name of Adolf Leve
5997	" " " " " "	New England Waste Co. in name of Claudine H. Leve
$70100	St.Louis, San Francisco Ry. Co.	Prior Lien 4% Bonds in name of Claudine H. Leve
$79450	" " " " " "	Adj.mtg. 6% Bonds in name of Claudine H. Leve
$140200	" " " " "	Inc. mtg. 6% Bonds in name of Claudine H. Leve
50	shares of common stock of J.S.Young Co.	in name of Claudine H. Leve
300	" " preferred " S.A.L.	in name of Adolf Leve
100	" " Cleveland, Cinc. Ch. & St.Louis Ry.	in name of Claudine H. Leve
76	" " Wyman, Bruten Co.	in name of Claudine H. Leve
25	" " G. W. Helme Co.	" " " Millicent Leve
50	" " Continental Gas & Oil Co.	in name of Felice Leve
44	" " Savoy Oil Co.	in name of Claudine H. Leve

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50	shares of	Electric Property Corp.	in name of Felice Leve
3	" "	Olympia Theatre	in name of Claudine H. Leve
25	" "	Arlington Mills	in name of Claudine H. Leve
25	" "	Arcadia Mills	in name of Claudine H. Leve
50	" "	Sears Roebuck & Co.	in name of Claudine H.Leve
50	" "	Goodyear Tire Co.	in name of Claudine H. Leve
97	" "	common stock of Am. Products Co.	in name of Claudine H. Leve
1	share of	" " " " " "	in name of Adolf Leve
1	" "	" " " " " "	in name of Lewis P. Sladen
1	" "	" " " " " "	in name of George E. Lund
97	shares of	" " Oversea Trading Co.	in name of Claudine H. Leve
1	share of	" " " " " "	in name of Adolf Leve
1	" "	" " " " " "	in the name of Lewis P. Sladen
1	" "	" " " " " "	in the name of George E. Lund

And also a dividend of ten per cent (10%) in the sum of One Hundred Thousand ($100,000) Dollars, declared by the New England Waste Company at a meeting of its Board of Directors held April 7, 1919, payable on April 15, 1919, in United States 4 1/4% Liberty Bonds, to stockholders of record on April 8, 1919, which said dividend has been paid to the Commonwealth Trust Company, of Boston, Massachusetts, as Depositary for the Alien Property Custodian, and is now in its possession.

5. I hereby in the public interest make the following

DETERMINATION, DIRECTION AND ORDER

The Alien Property Custodian may, and he is hereby authorized and directed, to transfer, dispose of, release, surrender and quitclaim to said Adolf Leve, said Claudine H. Leve, Adolf Leve, as the duly appointed and qualified guardian for Millicent Leve and Felice Leve, the two minor children of said Adolf and Claudine H. Leve, and to Lewis P. Sladen and George E. Lund, all of said Boston, as their respective interests may appear on the foregoing list, all the right, title and interest which the Alien Property Custodian and said W. Wolf and Soehne, or either of them, have acquired, or may acquire, by reason of said demands for said stocks, bonds and securities, and the transfer and surrender of the same to the Alien Property Custodian, in and to 9998 shares of the capital stock of the New England Waste Company, 463 shares of the capital stock of the American

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Linters Company, 998 shares of the capital stock of W. Wolf and Sons, 100 shares of the capital stock of American Products Company, 100 shares of the capital stock of Oversea Trading Company, and the remaining stocks, bonds and securities mentioned in said list, upon such terms and conditions as the Alien Property Custodian, or his duly authorized agent, may deem proper, including, but without limiting the generality of the foregoing, such terms and conditions as will secure the payment by said Adolf Leve and said five corporations, or any of them, to the Alien Property Custodian, or his successor in office, of any indebtedness now owing, or hereafter, on such accounting, determined to be then owing, by said Adolf Leve, and said five corporations, or any of them, to said W. Wolf and Soehne; and including the power to secure the aforesaid indebtedness of Adolf Leve, if any, and said five corporations, or any of them, to W. Wolf and Soehne, by causing the said stocks, bonds and securities mentioned in the list aforesaid, or any part thereof, so released to said Adolf Leve, Claudine H. Leve, Adolf Leve as guardian of Millicent Leve and Felice Leve, Lewis P. Sladen, and George E. Lund, as aforesaid, to be held as security for the payment of the said indebtedness, if any, under such form of trust agreement, or otherwise, as may seem proper to the Alien Property Custodian, or his duly authorized agent; and including the power to make such arrangements as the Alien Property Custodian, or his successor in office, deems expedient, to prevent said shares of the capital stock of said five corporations, or any part thereof, from passing into German hands, or into German control, for such period as may seem proper to the Alien Property Custodian, or his successor in office.

6. My reasons in the public interest for the foregoing determination, direction, order, rule and regulation are: (a) The evidence presented shows rhat the interest of the Alien Property Custodian in said stocks, bonds and securities may be

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merely the right to hold the same as collateral for the payment of such indebtedness, if any, of Adolf Leve and said five corporations, or any of them, to said W. Wolf and Soehne; (b) that said Adolf Leve has offered to pay, or cause to be paid, after accounting, whatever sum, if any, is found to be due from him and each of said five corporations, or any of them, to said W. Wolf and Soehne, and has offered to secure the payment of same; (c) that the most effective method whereby the indebtedness, if any, of said Adolf Leve and said five corporations, or any of them, to said W. Wolf and Soehne, in so far as the same can now be determined, can be speedily and safely liquidated is by the transfer, surrender and release of said stocks, bonds and securities, and the right, title and interest therein of said W. Wolf and Soehne, and of the Alien Property Custodian; said Adolf Leve thereupon agreeing to pay, or cause to be paid, said indebtedness, if any, and to secure the payment of the same.

Done at the District of Columbia this 28th day of May, in the year of our Lord One Thousand Nine Hundred and Nineteen, and of the independence of the United States of America the One Hundred and Forty-Third.

Frank L. Polk

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